

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): John Plaintiff 1050 Main Street Merced CA 94022 TELEPHONE NO.: (650) 533-2222 FAX NO. (Optional): E-MAIL ADDRESS (Optional): john@example.com ATTORNEY FOR (Name): Self-Representing		To keep other people from seeing what you entered on your form, please press the Clear This Form button at the end of the form when finished.
SUPERIOR COURT OF CALIFORNIA, COUNTY OF Merced STREET ADDRESS: 627 W 21st St MAILING ADDRESS: CITY AND ZIP CODE: Merced CA 95340 BRANCH NAME: Merced County Superior Court		
PLAINTIFF/PETITIONER: John Plaintiff DEFENDANT/RESPONDENT: ACME INC.		
DECLARATION		
		CASE NUMBER:

I am John Plaintiff, and I ask this Court to enter judgment against ACME INC. for \$5,000.00 for work performed on my vehicle that failed to correct the agreed issue. I am seeking this amount as reimbursement for payment made and associated damages resulting from their breach of contract and failure to perform as agreed.

On April 1, 2026, I took my 2021 Mercedes-Benz CLA (VIN 1234567891) to ACME AUTO REPAIR for diagnosis and repair work to correct a persistent engine “lifter noise.” ACME AUTO REPAIR agreed to complete the repair and represented in their warranty documents that the issue would be resolved (Exhibit A — 30 Day Warranty; Exhibit B — Warranty Doc). I paid \$5,000.00 that same day using check number 1842 for the repair, confirmed by the invoice and payment record (**Exhibit C — Check Copy; Exhibit D — Repair Invoice**). ACME AUTO REPAIR released my vehicle on April 1, 2026, claiming the repair was finished, but the lifter noise persisted immediately after I left the shop. I returned to ACME AUTO REPAIR two hours later with a witness, Janey Do Do, to confirm the noise was still present and requested that they fix the problem or issue a refund. ACME AUTO REPAIR refused both requests. On April 2, 2026, I emailed ACME AUTO REPAIR again seeking warranty service or reimbursement, attaching proof of payment and referencing their written warranty terms, but received no resolution (Exhibit E — ABC Estimate; Exhibit F — Check Copy 3; Exhibit G — Refund Email; Exhibit H — Email Refund Request). Additional evidence includes my formal written demand for reimbursement dated May 4, 2026 (**Exhibit I — Demand Letter**).

ACME AUTO REPAIR’s refusal to honor their contract and warranty has caused substantial financial harm. I have lost \$5,000.00 paid for ineffective repairs and have had to pursue alternative corrective estimates that will impose further expenses. I relied on their stated expertise and contractual promises, and their failure to resolve the issue adds unnecessary costs, delays, and inconvenience.

I ask this Court to award me \$5,000.00 to compensate me for the payment made to ACME AUTO REPAIR and the damages caused by their failure to perform the agreed-upon repair. This request is supported by written agreements, payment records, and correspondence, and is fair under the circumstances.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.
 Date: 05/11/2026

 (TYPE OR PRINT NAME)

 (SIGNATURE OF DECLARANT)

☐ Attorney for

☒ Plaintiff

☐ Petitioner

☐ Defendant

☐ Respondent

☐ Other (Specify):